

Tentative Rulings and Resolution Review Hearings

August 17, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

BAKER VS. SMITH, ET AL.

CASE NUMBER: 26CV-0209620

Tentative Ruling on Motion to be Relieved as Counsel: John Hardy of Wade Litigation, APC moves to be relieved as counsel for Defendant Master Blend, LLC. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). While the proof of service filed in this matter indicates service of the three necessary documents, service is untimely. Service by mail within California on July 23, 2026 does provide adequate notice for an August 17, 2026 hearing date. CCP § 1005(b). Without timely notice, the motion is **DENIED** without prejudice. The Court is unable to modify the proposed Order submitted. Defendant Master Blend, LLC's counsel is to provide an Order.

The Court notes that Substitutions of Attorney were recently filed for other Defendants/Cross-Complainants who

are now self-represented. Should this motion be filed in the future, counsel is reminded that these parties will need to be served.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

*Today's calendar is being heard by a visiting judge who has recused on this matter. Per the Order of Recusal dated August 14, 2026, today's hearing was reset to **Monday, August 24, 2026 at 8:30 a.m. in Department 63.***

HUFFMAN VS. HOLIDAY MARKET SAV MOR FOODS NORTH STATE GROCERY INC., ET AL.

CASE NUMBER: 25CV-0208866

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 1, 2026 to Plaintiff Linda Huffman and counsel Law Offices of Sharona Eslamboly Hakim for failure to timely serve Defendants as required by CRC 3.110(b). Plaintiff has since filed a Proof of Service of Summons for each of the named Defendants. The Order to Show Cause is **DISCHARGED**. Defendant North State Grocery, Inc. has filed an Answer. The Court notes that the date of personal service for Defendant Victor & Evye Szanto Trust is July 2, 2026, therefore, the time for filing a responsive pleading has lapsed. Plaintiff has not sought entry of default as required by CRC 3.110(g). The matter will be on calendar on **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default or responsive pleading and, if appropriate, trial setting. The Court expects Plaintiff to take the necessary steps to get the matter at issue prior to the next hearing. Plaintiff is to give Notice of this hearing to all parties and file said Notice with the Court no later than 5 Court days prior to said hearing.

KNOX VS. MOHAMUD, ET AL.

CASE NUMBER: 23CV-0202275

Tentative Ruling on Motions to Compel Discovery: Defendant Habib Bashir Mohamud filed a Motion to Compel Plaintiff's Responses to Defendants' Request for Supplemental Interrogatories, Set One, and Request for Supplemental Demand for Production, Set One. Plaintiff did not oppose the motion. The Court notes the trial in this matter has been continued several times. At the hearing on July 23, 2026, the Court granted Defendants' request to hear discovery motions after the cut-off date, pursuant to CCP § 2024.05.

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Defendant has provided evidence that discovery was propounded and that Plaintiff did not provide verified responses within the required timeframe.

Sanctions. Monetary sanctions are sought in the amount of \$2,310 in each motion. This is comprised of five hours of attorney time on each motion at the rate of \$450 per hour plus a filing fee of \$60. No evidence was provided to support the hourly rate requested, which is higher than average for Shasta County. The Court finds \$300 to be a reasonable hourly rate. No breakdown was provided for the five hours requested on each motion. Given the lack of Opposition, the Court will award 3.5 hours on the Supplemental Interrogatories motion, and 2.5 hours on the Supplemental Demand for Production motion. This reflects a reduction of 1.5 hours for not needing to review an Opposition and prepare a substantive Reply and an additional one hour reduction for attending the hearing on the Supplemental Demand for Production motion because the motions will be heard at the same time. This amounts to \$1,110 on the Supplemental Interrogatories motion and \$810 on the Supplemental Demand for